

Annual Budget Report (Required Civil Code Sec. 4525)

Autumn Terrace at William Owners Association

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AUTUMN TERRACE AT WILLIAM

2024-25 Budget Package and Disclosures Summary of Policies and Rules



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Autumn Terrace at William Owners' Association

NOTICE OF ASSESSMENT CHANGE

The 2024-25 Pro Forma Budget for the Autumn Terrace at William Owners' Association has been adopted by the Board of Directors on May 1, 2024 and is enclosed on pages 3-4. **The Budget will reflect a 19% increase in assessments from \$155.00 per unit per month to \$185.00 per unit per month, effective July 1, 2024.**

The Board of Directors has worked diligently during the past year to improve operations and decrease expenses. In order to meet maintenance costs and needs, the Board increased budgetary items as follows:

Increased Operating Expenses	
Insurance	10%
Audit / tax preparation	1%
Miscellaneous	110%
Management	4%
Management Extras	67%
Electricity	59%
Water	57%
Landscape	2%
Irrigation Repairs	38%
General Repairs	44%
Decreased Operating Expenses	
Tree Trimming	-100%

The monthly reserve fund contribution increased 15% from \$4,400.00 to \$5,060.00, per month (\$60,720.00 annually) for 2024-25. Overall, the budget increased 19%.

The reserve funding practices of the Association are reviewed and approved annually by the Board of Directors. The Association engaged an independent engineering consultant, California Reserves to determine the complete reserve funding obligations of the Association. The updated reserve study, dated April 12, 2024 (draft); May 6, 2024 (final) was reviewed and adopted as of the date of this budget. The recommendations of this study has been incorporated into the 2024-25 Budget. A new reserve study with a site visit is forthcoming for 2026.

A summary of the reserve study update has been provided with this budget for your review, along with disclosures regarding the level of reserve funding as required under California Civil Code. The following disclosure is also required by California Civil Code:

In the preparation of the fiscal year 2024-25 budget for the Autumn Terrace at William Owners' Association, the Board of Directors has not determined and does not anticipate that the levy of one or more special assessments will be required to repair, replace, or restore any major components or to provide adequate reserves therefore, based upon all information available to the Board as of May 1, 2024.

The Board of Directors has relied on the independent reserve study update prepared by California Reserves, dated April 12, 2024 (draft); May 6, 2024 (final) to calculate and establish those reserves necessary to defray the future repair, replacement, or additions to those major components that the Association is obligated to maintain. A copy of the study prepared by California Reserves is available to any owner upon written request to the Board of Directors.

Autumn Terrace at William Owners' Association

If you have any questions regarding this budget please plan to attend one of the quarterly Board meetings. Meetings of the Board of Directors held each quarter via Zoom Videoconference and noted in the monthly newsletter and billing statement. All Board meetings are open to all homeowners who are members of the Association. If a homeowner cannot participate by phone, please contact Compass Management at (408) 226-3300 or via email at helpdesk@gocompass.com to arrange to have a physical location made available to you to participate. If you have technical issues trying to access the Zoom call, please email Craig Cordi at ccordi@gocompass.com.

Autumn Terrace at William Owners' Association

2024-2025 Budget Summary

	2023-2024	2024-2025	Percent Change
Operating Expenses	\$ 11,875.00	\$ 14,365.00	21%
Reserve Contributions	\$ 4,400.00	\$ 5,060.00	15%
Total Budgeted Expenses	\$ 16,275.00	\$ 19,425.00	19%
Assessment Per Unit Per Month:	\$ 155.00	\$ 185.00	19%

2024-2025 Fiscal Year Budgeted Income \$ 233,100.00

2024-2025 Projected Starting Reserve Balance \$ 70,047.74

2024-2025 Fully Funded Beginning Balance Needed Per Reserve Study \$ 351,685.78

Percentage of Recommended Balance Actually Funded: 20 %

Independent Reserve Study Prepared by: California Reserves LLC

Date of Latest Reserve Study: May 6, 2024

For the Fiscal Year Beginning: July 1, 2024

The Reserve Funding Practices of the Association are reviewed and approved annually by the Board of Directors. The Board of Directors has relied on the reserve study noted above to calculate and establish those reserves necessary to defray the future repair, replacement, or additions to those major components that the Association is obligated to maintain. As of the date of this budget the Board has not determined and does not anticipate that the levy of one or more special assessments will be required to repair, replace, or restore any major components or provide adequate reserves therefor.

A copy of the latest reserve study is available to any owner upon written request to the Board of Directors, care of Compass Management Group, 77 Las Colinas Lane, San Jose, CA 95119, and is available for review on the Association website at www.GoCompass.com.

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Autumn Terrace at William Owners' Association

2024-2025 Approved Budget - Pro Forma

Approved by the Board of Directors on:
5/1/2024

	8 Months		Approved				
EXPENDITURES	2023-2024 BUDGET MONTHLY	2023-2024 AVERAGE MONTHLY	2024-2025 BUDGET MONTHLY	2024-2025 BUDGET FULL YEAR	COST PER UNIT MONTHLY	PERCENT OF TOTAL BUDGET	PERCENT CHANGE
Corporate							
4100 Insurance	484.00	550.88	532.00	6,384.00	5.07	3%	10%
4110 Legal	50.00	329.63	50.00	600.00	0.48	0%	0%
4120 Audit/Tax Preperation	133.00	198.75	134.00	1,608.00	1.28	1%	1%
4140 Taxes	10.00	0.00	10.00	120.00	0.10	0%	0%
4160 Printing and Postage	225.00	187.14	225.00	2,700.00	2.14	1%	0%
4180 Accounting	0.00	0.00	0.00	0.00	0.00	0%	0%
NEW Election Cost	200.00	0.00	200.00	2,400.00	1.90	1%	0%
4190 Miscellaneous	62.00	128.67	130.00	1,560.00	1.24	1%	110%
4250 Bad Debts	0.00	45.00	30.00	360.00	0.29	0%	0%
4300 Management	1,726.00	1,941.75	1,795.00	21,540.00	17.10	9%	4%
4310 Management Extras	15.00	95.16	25.00	300.00	0.24	0%	67%
Sub-Total	2,905.00	3,476.98	3,131.00	37,572.00	29.82	16 %	8 %
Utilities							
5400 Electricity	560.00	886.50	890.00	10,680.00	8.48	5%	59%
5410 Water	2,870.00	4,468.54	4,500.00	54,000.00	42.86	23%	57%
Sub-Total	3,430.00	5,355.04	5,390.00	64,680.00	51.33	28 %	57 %
Maintenance							
6510 Landscape	4,730.00	5,321.25	4,801.00	57,612.00	45.72	25%	2%
6520 Addl Landscape	40.00	0.00	40.00	480.00	0.38	0%	0%
6530 Irrigation Repairs	290.00	494.33	400.00	4,800.00	3.81	2%	38%
6550 Tree Trimming	30.00	0.00	0.00	0.00	0.00	0%	-100%
6580 Security	0.00	0.00	0.00	0.00	0.00	0%	0%
Sub-Total	5,090.00	5,815.58	5,241.00	62,892.00	49.91	27 %	3 %
Repairs							
7710 Maintenance Inspection	0.00	0.00	0.00	0.00	0.00	0%	0%
7720 Backflow Service	0.00	0.00	0.00	0.00	0.00	0%	0%
7790 Misc. / Contingency	100.00	0.00	100.00	1,200.00	0.95	1%	0%
7800 General Repairs	350.00	707.23	503.00	6,036.00	4.79	3%	44%
Sub-Total	450.00	707.23	603.00	7,236.00	5.74	3 %	34 %
TOTAL OPERATING	11,875.00	15,354.83	14,365.00	172,380.00	136.81	74 %	21 %
Reserves							
8200 Reserve Contribution	4,400.00	3,850.00	5,060.00	60,720.00	48.19	26%	15%
8210 Interest Allocation	0.00	6.91	0.00	0.00	0.00	0%	0%
TOTAL RESERVES	4,400.00	3,856.91	5,060.00	60,720.00	48.19	26 %	15.0 %
TOTAL EXPENSES	16,275.00	19,211.74	19,425.00	233,100.00	185.00	100 %	19.4 %

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Report Date: 05/06/2024
For Fiscal Year: 07/01/2024 to 06/30/2025

Level 3: Reserve Study Update without Onsite Inspection
Autumn Terrace at William Homeowners Association

RESERVE STUDY DISCLOSURES & SUMMARY

A full copy of the Reserve Study Report is available to any owner upon request

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COMPONENT LIST

	Definitions in Section 1 Intro	R.L.	U.L.	Def.	Quantity	Unit Cost	Current Estimated Cost
Paved Surfaces							
1	Concrete Walkways, Repair (OYR <2020)	0	5		1 Fund	\$7,433.99	\$7,434
2	Concrete Curbs/Gutters, Replace	8	25		1,400 LF	\$24.64	\$34,498
3	Asphalt, Overlay	9	25		41,290 SF	\$5.39	\$222,699
4	Asphalt, Seal/Repair (Phase 1)	2	6		20,520 SF	\$0.38	\$7,734
5	Asphalt, Seal/Repair (Phase 2)	2	6		20,770 SF	\$0.38	\$7,828
Lighting							
6	Monument Light, Replace	12	30		1 EA	\$1,176.18	\$1,176
7	Bollard Lights, Replace	12	30		67 EA	\$1,270.55	\$85,127
8	Bollard Lights, Repaint (OYR <2020)	0	5		67 EA	\$101.84	\$6,823
Fencing							
9	Wood Fence, Repair Fund	6	10		1 Fund	\$6,125.22	\$6,125
Grounds							
10	Signage, Partial Replacement	2	10		1 Fund	\$1,618.06	\$1,618
11	Mailboxes, Replace	2	20		8 EA	\$2,875.47	\$23,004
12	Stone Benches/Planters & 4' Pillars, Repair	2	10		1 Fund	\$4,416.28	\$4,416
Landscaping							
13	Trees, Trim	0	1		1 Fund	\$23,590.00	\$23,590
14	Landscaping, Major Replenish	7	10		1 Fund	\$42,080.80	\$42,081
15	Landscaping, Minor Replenish	2	5		1 Fund	\$8,575.30	\$8,575
16	Block Wall, Repaint (OYR <2020)	0	10	1	8,960 SF	\$1.14	\$10,247
17	Block Wall, 3% Minor Repair	7	15		269 SF	\$117.70	\$31,638
Irrigation							
18	Backflow Devices, Replace	7	25		3 EA	\$2,590.63	\$7,772
19	Irrigation Controllers, Replace (1 of 5 total) (OYR <2020)	0	3		1 EA	\$3,652.01	\$3,652
20	Irrigation System, Repair	2	5		1 Fund	\$4,802.20	\$4,802
Admin							
21	Reserve Study Onsite Inspection	1	3		1 Fund	\$1,043.25	\$1,043
Total Current Replacement Estimate:							\$541,883

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FINANCIAL DISCLOSURE SUMMARY

PROPERTY DESCRIPTION & NOTES

Autumn Terrace at William Homeowners Association is a 105 unit single family planned community located in San Jose along South 22nd Street past East William. 7 units are located across South 22nd from the remaining 98. There are no major amenities.

PROPERTY INFORMATION		FINANCIAL ASSUMPTIONS	
Community Type	Single Family PUD	Fiscal Year Start	07/01/2024
Residential Units	105	Fiscal Year End	06/30/2025
Commercial Units	0	2023-24 Contribution	\$52,800
Year Built	2006	Inflation Rate	3.00%
Last Site Inspection	4/24/2023	Interest Rate	0.75%
		Threshold Factor	5.00%

ESTIMATED CURRENT FISCAL YEAR END RESERVE BALANCE

Reserve Fund Cash Balance as of:	February 29, 2024	\$52,268.49
Anticipated Interest Revenue prior to June 30, 2024		\$131.03
Anticipated Budgeted Fund Contribution prior to June 30, 2024		\$17,648.22
Anticipated Unbudgeted Contributions prior to June 30, 2024		
Anticipated Reserve Fund Expenditures prior to June 30, 2024		
Projected Reserve Fund Cash Balance June 30, 2024		\$70,047.74

JUNE 30, 2024 FULLY FUNDED BALANCE CALCULATION

Projected Fully Funded Balance	\$351,685.78
Percent Funded	20%
Avg. Reserve Fund Surplus / (Deficit) per Member	(\$2,682.27)

Autumn Terrace at William HOA is currently 20% funded. This means that the association is at high risk for a special

0-30% High Risk

30-70% Medium Risk

70-100% Low Risk

FIVE YEAR PROJECTED FUNDING PLAN SUMMARY

Fiscal Year Ending	Reserve Contribution	Special Assessment	Percent Funded
2024/25	\$60,720	-	24%
2025/26	\$69,828	-	30%
2026/27	\$80,302	-	30%
2027/28	\$92,348	-	41%
2028/29	\$103,429	-	52%

Summary Notice: This five-year funding plan summary is provided in accordance with California Civil Code Section 55300. The full Reserve Study Report is available and will be provided, by the association, to any member upon request.

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REQUIRED DISCLOSURES

QUALIFICATIONS

All Reserve Study Reports prepared by California Reserves LLC are prepared by or under the direction of a certified Reserve Specialist and are performed in accordance with the National Reserve Study Standards (NRSS). The Reserve Specialist designation is awarded by CAI to qualified reserve specialists who, through years of specialized experience, can help ensure that community associations prepare their reserve budget as accurately as possible.

CONFLICTS OF INTEREST

California Reserves LLC certifies that we do not have any vested interests, financial interests, or other interests that would cause a conflict of interest or distortion of data in the preparation of this Reserve Study Report.

PHYSICAL ANALYSIS

The physical analysis completed during a Level 1 or a Level 2 onsite inspection is not intended to be a project audit or quality inspection and may include representative sampling of similar components. Unit counts and measurements are calculated based on the visual inspection, on-site measurements, satellite view, information provided by the association, and the association's site map or schematic (if available). No intrusive testing, invasive testing or structural integrity testing was completed. Examples of non-visible components may include but are not limited to sewer lines, water lines, pool lines, irrigation lines, electrical wiring, septic systems, and other items that are not accessible or visible during the inspection. While the inspection was diligent, the information provided in this report is the opinion of the individual inspector based on his/her background and experience and does not carry with it any implied warranty or guarantee.

CLIENT & VENDOR DATA

The information provided to California Reserves LLC by the association's Vendors, Board of Directors, Management Company, or other official representative is assumed to be complete and accurate unless otherwise stated. The quality of the Reserve Study Report relies heavily on the accuracy of historical and current data provided by these sources. Component data provided from previous reserve studies prepared by a certified RS or PRA is assumed to be accurate and reliable for the purposes of Level 2 and Level 3 reports. For Level 3 reports, since no onsite inspection is completed, all component information is taken from the prior Reserve Study Report and input from the association. The actual or projected reserve balance is based on information provided by the association or representative and was not audited by California Reserves LLC.

SCOPE

The Reserve Study Report is a budgeting tool for the association's use based on the available information provided to California Reserves LLC and should not be used for the purpose of performing an audit, quality, or forensic analysis or background checks of historical records.

COMPONENT DATA

The estimated lifespan of components relies heavily on the association completing recommended standard preventative maintenance and repairs. California Reserves LLC assumes that all construction and components are free of construction defects and design issues and will reach their full expected useful life. Component costs are estimated based on information provided by a variety of sources including the prior Reserve Study Report, association vendors, contractor bids, project information from similar associations, online cost estimating publishers (e.g. Marshall & Swift, RS Means), and California Reserves LLC proprietary cost database.

RESERVE FUNDING DISCLOSURE SUMMARY

Assessment and Reserve Funding Disclosure Summary For the Fiscal Year Ending June 30, 2025

(1) The regular assessment per ownership interest is \$185.00 per month.

Note: If assessments vary by the size or type of ownership interest, the assessment applicable to this ownership interest may be found on page _____ of the attached summary.

(2) Additional regular or special assessments that have already been scheduled to be imposed or charged, regardless of the purpose, if they have been approved by the board and/or members:

Date assessment will be due:	Amount per ownership interest per month or year:	Purpose of the assessment:
N/A		

Note: If assessments vary by the size or type of ownership interest, the assessment applicable to this ownership interest may be found on page ____ of the attached report.

(3) Based upon the most recent reserve study and other information available to the board of directors, will currently projected reserve account balances be sufficient at the end of each year to meet the association's obligation for repair and/or replacement of major components during the next 30 years?

Yes

(4) If the answer to (3) is no, what additional assessments or other contributions to reserves would be necessary to ensure that sufficient reserve funds will be available each year during the next 30 years that have not yet been approved by the board or the members?

Approximate date assessment will be due:	Amount per ownership interest
	Total:

(5) All major components are included in the reserve study and are included in its calculations.

(6) Based on the method of calculation in paragraph (4) of subdivision (b) of Section 5570, the estimated amount required in the reserve fund at the end of the current fiscal year is \$351,685.78, based in whole or in part on the last reserve study or update prepared by California Reserves as of 05/06/2024. The projected reserve fund cash balance at the end of the current fiscal year is \$70,047.74, resulting in reserves being 20% funded at this date.

(7) Based on the method of calculation in paragraph (4) of subdivision (b) of Section 5570 of the Civil Code, the estimated amount required in the reserve fund at the end of each of the next five budget years is (below), and the projected reserve fund cash balance in each of those years, taking into account only assessments already approved and other known revenues, is (below), leaving the reserve at (below) percent funding. If the reserve funding plan approved by the association is implemented, the projected reserve fund cash balance in each of those years will be (below), leaving the reserve at (below) percent funding.

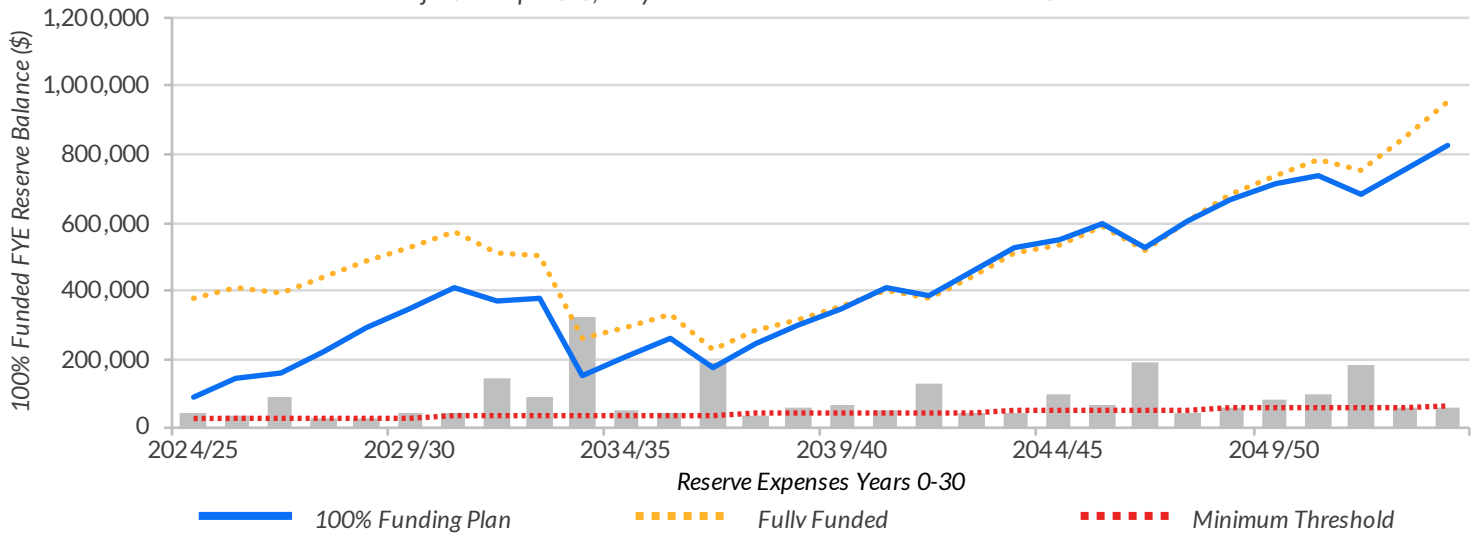
Fiscal Year Ending	Fully Funded Balance	Projected Reserve Fund Balance	Percent Funded
2024/25	\$377,645	89,483	24%
2025/26	\$411,867	123,785	30%
2026/27	\$396,787	117,831	30%
2027/28	\$441,575	181,071	41%
2028/29	\$491,717	257,926	52%

Note: The financial representations set forth in this summary are based on the best estimates of the preparer at that time. The estimates are subject to change. At the time this summary was prepared, the assumed long-term before-tax interest rate earned on reserve funds was 0.75% per year, and the assumed long-term inflation rate to be applied to major component repair and replacement costs was 3.00% per year.

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100% FUNDING PLAN

100% Funding Plan Estimated Fiscal Year End Reserve Balance Compared To:
Projected Expenses, Fully Funded Balance and Minimum Threshold



Fiscal Year	Beginning Reserve Balance (\$)	Annual Reserve Contribution (\$)	Average Per Unit/Month (\$)	Delta from Prior Year (%)	.75% Interest (\$)	Anticipated Expenses (\$)	Special Assessment (\$)	Ending Reserve Balance (\$)	Fully Funded Balance (FFB \$)	Year End % Funded
2024/25	70,048	60,720	48.19	15.00%	214	41,499		89,483	377,645	24%
2025/26	89,483	94,116	74.70	55.00%	402	35,927		148,073	411,867	36%
2026/27	148,073	95,057	75.44	1.00%	462	86,535		157,057	396,787	40%
2027/28	157,057	96,008	76.20	1.00%	955	29,768		224,251	441,575	51%
2028/29	224,251	96,968	76.96	1.00%	1,474	27,725		294,968	491,717	60%
2029/30	294,968	97,937	77.73	1.00%	1,883	43,875		350,913	528,693	66%
2030/31	350,913	98,917	78.51	1.00%	2,333	39,842		412,321	572,954	72%
2031/32	412,321	99,906	79.29	1.00%	1,990	146,971		367,245	510,283	72%
2032/33	367,245	100,905	80.08	1.00%	2,055	93,298		376,908	503,162	75%
2033/34	376,908	101,914	80.88	1.00%	381	326,117		153,086	258,233	59%
2034/35	153,086	102,933	81.69	1.00%	756	52,266		204,510	290,300	70%
2035/36	204,510	103,963	82.51	1.00%	1,183	46,839		262,816	331,262	79%
2036/37	262,816	105,002	83.34	1.00%	549	189,565		178,803	228,861	78%
2037/38	178,803	106,052	84.17	1.00%	1,070	36,175		249,750	283,867	88%
2038/39	249,750	107,113	85.01	1.00%	1,429	59,221		299,071	319,347	94%
2039/40	299,071	108,184	85.86	1.00%	1,758	64,655		344,358	352,934	98%
2040/41	344,358	109,266	86.72	1.00%	2,212	49,358		406,478	406,002	100%
2041/42	406,478	110,358	87.59	1.00%	2,069	130,655		388,251	379,726	102%
2042/43	388,251	111,462	88.46	1.00%	2,564	46,378		455,899	442,351	103%
2043/44	455,899	112,577	89.35	1.00%	3,095	43,195		528,376	513,103	103%
2044/45	528,376	113,702	90.24	1.00%	3,239	96,463		548,855	534,170	103%
2045/46	548,855	114,839	91.14	1.00%	3,593	69,741		597,546	586,543	102%
2046/47	597,546	115,988	92.05	1.00%	3,063	189,094		527,503	520,800	101%
2047/48	527,503	117,148	92.97	1.00%	3,607	46,557		601,701	603,241	100%
2048/49	601,701	118,319	93.90	1.00%	4,097	55,377		668,740	682,513	98%
2049/50	668,740	119,502	94.84	1.00%	4,405	81,428		711,219	740,877	96%
2050/51	711,219	120,697	95.79	1.00%	4,602	97,645		738,874	787,942	94%
2051/52	738,874	121,904	96.75	1.00%	4,164	183,701		681,241	751,543	91%
2052/53	681,241	123,123	97.72	1.00%	4,687	56,359		752,692	849,090	89%
2053/54	752,692	124,355	98.69	1.00%	5,228	55,591		826,683	954,345	87%

0-30% High Risk

30-70% Medium Risk

70-100% Low Risk

Autumn Terrace at William Owners' Association

MEMBERS' RIGHT TO ASSOCIATION MINUTES

Civil Code §4950 requires that Homeowners be advised of their right to receive a copy or summary of minutes of Board of Directors meetings. Copies or summaries of minutes will be made available upon receipt of a written request specifying the meeting dates desired and including the appropriate distribution fee. All requests should be submitted to Compass Management Group, Inc., 77 Las Colinas Lane, San Jose, CA 95119.

SPECIAL ASSESSMENTS

(Civil Code Section §5300(b)(5))

The Board of Directors HAS NOT discussed a special assessment.

PERIODIC SITE INSPECTIONS

Civil Code §5550 requires that the Board of Directors performed, or caused to be performed, a site inspection and visual inspection of the association's reserve components on **April 24, 2023** by California Reserves.

POLICY STATEMENTS

Autumn Terrace at William Owners' Association and its officers, directors, and management company, Compass Management Group, Inc. are committed to running the Association in a legal and neighborly manner. Accordingly, we wish to remind the members of the Association and their residents or tenants of the following:

As provided for under federal and state fair housing laws, it is illegal to discriminate against any person because of his or her race, national origin, religion, sex, physical or mental disability, familial status, marital status, sexual orientation, age, or source of income. **Autumn Terrace at William Owners' Association** is operated in accordance with these laws as provided for in 42 U.S.C. Section 3601, et. seq.

Specifically, **Autumn Terrace at William Owners' Association** does not:

1. Discriminate against any person in the terms or conditions of residing in the complex, or in the provision of services or facilities, because of that person's membership in one or more of the protected classes listed above; nor
2. Condone or tolerate any acts or coercion or intimidation, threats or interference by any of our employees, agents or residents towards any other owner or resident because he or she is a member of one or more of the protected classes listed above.

Tolerate either the creation or fostering of a hostile living environment by any homeowner, resident or tenant at **Autumn Terrace at William Owners' Association**, nor do we tolerate any harassing or otherwise hostile conduct by any homeowner, resident or tenant towards any other homeowner, resident or tenant.

RIGHT TO RECEIVE ANNUAL REPORT

Corporations Code § 8321 requires that Homeowners be advised of their right to receive a financial report. The annual report shall be prepared not later than 120 days after the close of the association's

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fiscal year. A member of the association may receive a copy of the annual report by sending a written request to **Compass Management Group, Inc., 77 Las Colinas Lane, San Jose, CA 95119.**

ADDITIONAL RESERVE DISCLOSURES

(Civil Code §5300(B)(4) and §5300 (b)(8))

The Board of Directors **HAS NOT** determined to defer or not undertake repairs or replacement of any major component with remaining useful life of 30 years or less.

The Association **DOES NOT** have outstanding loans as of the date of this budget.

COMPENSATORY DAMAGE AWARDS AND/OR SETTLEMENT FUNDS

(Civil Code Section §5565(b)(3))

The Association **HAS NOT** received compensatory damage awards and/or settlement funds during the current fiscal year.

RIGHT TO SUBMIT SECONDARY ADDRESS

Civil Code §4040 requires that Homeowners be advised of their right to submit a secondary address to the Association for purposes of collection notices. All requests should be submitted to the Compass Management Group Inc., Association Manager, 77 Las Colinas Lane, San Jose, CA 95119, in writing, signed by the owner, and mailed in a manner that confirms the Association has received it. After an owner identifies a secondary address, the Association will send copies of any collection notices to the secondary address provided, in addition to the owner's primary address shown in the Association's records. An owner may identify or change a secondary address at any time. If a secondary address is identified or changed during any collection process, the Association will only be required to send notices to the designated secondary address from the point that the Association receives the request.

INSURANCE DISCLOSURE REQUIREMENTS

A summary of the Association's Insurance Policy is attached to this Budget Packet.

A 1993 California Appellate Court opinion held that association members who share an ownership interest in a community's common area can be held personally responsible for injuries and property damage arising from the use of that common area. The State Legislature then passed law providing association members a degree of immunity from personal suit as long as their association carries certain types and amounts of liability insurance.

The statute does not require associations to obtain insurance in such types and amounts, but it does require them to notify members of the association's coverage. In this way, members can take steps to adequately protect themselves and their assets from large negligence claims. As required by law, the following information tells you about the types and limits of liability insurance our Association currently maintains:

The Association carries the levels of insurance specified by **Civil Code §5805**. As a result, owners may be individually liable by reason of their ownership interest in the common area only for their proportional share of assessments, regular or special, levied to pay the amount of a court judgment that exceeds the limits of the Association's liability insurance.

For additional information about owner liability and protecting personal assets, members are advised to consult their own insurance or legal advisor.

Autumn Terrace at William Owners' Association

SCHEDULE OF FINES

- () The Association has not adopted a fine schedule.
- (X) The Association has adopted a schedule of fines, and it is enclosed in this budget packet.

SECURITY DISCLAIMER

The Association does not, and cannot, guarantee a crime-free community and does not guarantee the security of any residence, resident, visitor, or personal property. It is possible for someone to enter the property under false pretenses to commit crimes, for residents to commit crimes against their neighbors, for guests of residents to commit crimes, and for employees or contractors to commit crimes. As a result, the Association is not and can never be free of crime and cannot guarantee your safety or security. You should NOT rely on the Association to protect you from loss or harm—you should provide for your own security by taking common sense precautions, including but not limited to carrying insurance against loss; keeping your doors locked; refusing to open your door to strangers; asking workmen for identification; installation of a security system; locking your car; not leaving items visible in your vehicle; etc.

NOTICE ASSESSMENTS AND FORECLOSURE

This notice outlines some of the rights and responsibilities of owners of property in common interest development and the associations that manage them. Please refer to the sections of the Civil Code indicated for further information. A portion of the information in this notice applies only to liens recorded on or after January 1, 2003. You may wish to consult a lawyer if you dispute an assessment.

ASSESSMENTS AND FORECLOSURE

Assessments become delinquent 15 days after they are due, unless the governing documents provide for a longer time. The failure to pay association assessments may result in the loss of an owner's property through foreclosure. Foreclosure may occur either as a result of a court action, known as judicial foreclosure or without court action, often referred to as non-judicial foreclosure. For liens recorded on and after January 1, 2006, an association may not use judicial or non-judicial foreclosure to enforce that lien if the amount of the delinquent assessments or dues, exclusive of any accelerated assessments, late charges, fees, attorney's fees, interest, and costs of collection, is less than one thousand eight hundred dollars (\$1,800). For delinquent assessments or dues in excess of one thousand eight hundred dollars (\$1,800) or more than 12 months delinquent, an association may use judicial or non-judicial foreclosure subject to the conditions set forth in **Civil Code §5700**. When using judicial or non-judicial foreclosure, the association records a lien on the owner's property. The owner's property may be sold to satisfy the lien if the amounts secured by the lien are not paid (**Civil Code sections §5700 through §5720**).

In a judicial or non-judicial foreclosure, the association may recover assessments, reasonable costs of collection, reasonable attorney's fees, late charges, and interest. The association may not use non-judicial foreclosure to collect fines or penalties, except for costs to repair common areas damaged by a member or a member's guests, if the governing documents provide for this (**Civil Code §5725**).

The association must comply with the requirements of Article 2 (commencing with Section **§5659**) of Chapter 8 of the Civil Code when collecting delinquent assessments. If the association fails to follow these requirements, it may not record a lien on the owner's property until it has satisfied those requirements. Any additional costs that result from satisfying the requirements are the responsibility of the association (**Civil Code §5650**).

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At least 30 days prior to recording a lien on an owner's separate interest, the association must provide the owner of record with certain documents by certified mail, including a description of its collection and lien enforcement procedures and the method of calculating the amount. It must also provide an itemized statement of the charges owed by the owner. An owner has a right to review the association's records to verify the debt (**Civil Code §5650**).

If a lien is recorded against an owner's property in error, the person who recorded the lien is required to record a lien release within 21 days, and to provide an owner certain documents in this regard (**Civil Code §5685**).

The collection practices of the association may be governed by state and federal laws regarding fair debt collection. Penalties can be imposed for debt collection practices that violate these laws.

PAYMENTS

When an owner makes a payment, he or she may request a receipt, and the association is required to provide it. On the receipt, the association must indicate the date of payment and the person who received it. The association must inform owners of a mailing address for overnight payments (**Civil Code §5650**).

An owner may dispute an assessment debt by submitting a written request for dispute resolution to the association as set forth in Article 2 (commencing with Section 5900) of Chapter 10 of par 5 of Division 4 of the Civil Code. In addition, an association may not initiate a foreclosure without participating in alternative dispute resolution with a neutral third party as set forth in Article 2 (commencing with **Civil Code Section §5925**) of Chapter 7 of Title 6 of Division 2 of the Civil Code, if so requested by the owner. Binding arbitration shall not be available if the association intends to initiate a judicial foreclosure.

An owner is not liable for charges, interest, and costs of collection, if it is established that the assessment was paid properly on time (**Civil Code §5685**).

MEETINGS AND PAYMENT PLANS

An owner of a separate interest that is not a timeshare may request the association to consider a payment plan to satisfy a delinquent assessment. The association must inform owners of the standards for payment plans, if any exist. (**Civil Code §5665**).

The board of directors must meet with an owner who makes a proper written request for a meeting to discuss a payment plan when the owner has received a notice of a delinquent assessment. These payment plans must conform with the payment plan standards of the association, if they exist. (**Civil Code §5665**).

PLEASE TAKE NOTICE: California **Civil Code §5930** addresses your rights to sue the association or another member of the association regarding the enforcement of the governing documents and/or specified state laws. The following is a summary of **Civil Code §5930**.

ALTERNATIVE DISPUTE RESOLUTION

In general, **Civil Code §5930** provides that an association or an owner may not file a lawsuit to enforce the governing documents or to enforce certain laws that govern community associations, unless the parties **first** try to submit their dispute to alternative dispute resolution ("ADR"). Recognized forms of ADR include conciliation, mediation, or arbitration. The ADR law for common interest developments applied to enforcement of most provisions of the governing documents as well as to provisions of the Davis-Stirling

Autumn Terrace at William Owners' Association

Common Interest Development Act (**Civil Code §4000** through **Civil Code §4765**) and the Nonprofit Mutual Benefit Corporation Law (Corporations Code § 7110 et seq.).

The intent of the ADR law is to promote speedy and cost-effective resolution of disputes, to better preserve community cohesiveness, and to channel CC&R and compliance disputes away from our state's court system.

The form of alternative dispute resolution may be binding or non-binding, and costs will be borne as agreed to by the parties involved. The ADR law does not generally apply to assessment disputes or to disputes that can be resolved in small claims court.

Any party to a covered dispute may initiate the ADR process by serving a Request for Resolution on another party to the dispute. A Request for Resolution must contain (1) a brief description of the nature of the dispute, (2) a request for ADR, and (3) a notice that the party receiving the Request for Resolution is required to respond within 30 days of receipt or the Request will be deemed rejected.

If the Request is accepted, the ADR must be completed within 90 days of receipt of the acceptance, unless otherwise agreed by the parties. Any Request for Resolution sent to an owner must include a copy of the ADR law in its entirety. If an applicable statute of limitations will expire, serving the Request will extend the statutory period for 30 days and, if ADR is accepted, also for the 90-day period of time allowed to complete the process and any agreed-upon extension of time.

Failure of a member of the association to comply with the alternative dispute resolution requirements of Civil Code §5930 may result in the loss of your right to sue the association or another member of the association regarding enforcement of the governing documents or the applicable law.

Should the association or an individual member wish to file a lawsuit for enforcement of the governing documents or a specified statute, the law requires the association or the individual to file a certificate with the court **prior** to the filing of the suit, stating: (1) that ADR has been completed, (2) that one of the other parties did not accept the terms offered for ADR, or (3) that urgent orders of the court were necessary. Failure to file this certificate can be grounds for dismissing the lawsuit.

In any lawsuit to enforce the governing documents, **Civil Code §5975** provides that the prevailing party may be awarded attorneys' fees and costs. If any party has refused to participate in ADR prior to the lawsuit being filed the court may consider whether that refusal was reasonable when it determines how large or small the award should be.

PLEASE TAKE NOTICE: Pursuant to California **Civil Code §5905**, the association provides an informal, internal dispute resolution program whose goal is to reach early resolution of disputes over enforcement of the governing documents and/or specified state laws. The association's "meet and confer" program supplements and does not replace the requirement for more formal alternative dispute resolution (ADR) prior to filing an enforcement lawsuit.

"MEET AND CONFER" PROGRAM

The association offers a "meet and confer" program by which members who have disputes with the association involving their rights, duties, or liabilities under the governing documents or specified provisions of state law can explain their positions to the board or to a board representative and attempt

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to resolve their concerns informally. The "meet and confer" program also applies to circumstances when the board has a dispute with a member and would like to talk it over.

The following is a general description of the association's "meet and confer" program and how it works:

The Association's Meet & Confer Program is initiated at the written request of the unit owner or the Association. The Association's Meet & Confer Program shall follow the procedure stipulated in Civil Code §5915.

The association's "meet and confer" program is intended to resolve differences informally, in a fast, fair, and reasonable manner. Where the circumstances of a dispute reasonably call for the assistance of a neutral third party, the program makes maximum use of local dispute resolution services, including low-cost mediation services such as those listed on the Internet Web sites of the Department of Consumer Affairs and the United States Department of Housing and Urban Development. If such services are used, they are paid for entirely by the association

DELINQUENT ASSESSMENT COLLECTION POLICY STATEMENT

1. Regular assessments are due, in advance, on the first (1st) day of each month and delinquent if not received, in full, by the Association within fifteen (15) days after the due date thereof. Special and Special Individual Assessments are due on the date(s) specified upon imposition and each installment thereof shall be delinquent if not received by the Association within fifteen (15) days after it is due. A late charge of ten percent (10%) shall be due on any such delinquent assessment. **Receipt of this budget serves as due notice of your monthly assessment obligations. The issuance of a monthly billing statement by the Association is a courtesy only, not a requirement. Unit owners are responsible for ensuring the timely receipt of assessment payments by the Association.**
2. At the option of the Association, interest shall be due on all such amounts, once due and unpaid for thirty (30) days, at the rate of twelve percent (12%) per annum.
3. If any portion of any such assessment or late charge remains unpaid for thirty (30) days after the original due date thereof, a delinquent assessment reminder notice will be prepared and sent to the record owner(s). Please be advised that the Association has the right to collect all reasonable costs of collection.
4. If any portion of any such assessment or late charge remains unpaid for ninety (90) days after the original due date thereof, a "Letter of Intent" to file a Notice of Delinquent Assessment ("Lien") will be prepared and sent to the record owner(s).
5. All such amounts, and all other assessments and related charges thereafter due to the Association until all such amounts are paid, must be paid in full and the Association shall not be required to accept any partial or installment payments from the "Letter of Intent" date to the time that all such amounts are paid in full.
6. If all such amounts have not been received ninety (90) days after the original due date thereof, a Lien will be prepared and recorded as to the delinquent property and the owner(s) thereof, and all resulting collection fees and costs will be added to the total delinquent amount.
7. If all such amounts have not been received, in full, within thirty (30) days after the recordation of such Lien, the Association may, without further advance notice, proceed to take any and all additional enforcement remedies as the Association, in its sole discretion, deems appropriate, including, without limitation, non-judicial foreclosure of such Lien, judicial foreclosure, or suit for money damages, all at the expense of the property owner(s).

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8. All payments received by the Association, regardless of the amount paid, will be directed to the oldest assessment balances first, until which time all assessment balances are paid, and then to late charges, interest and costs of collection unless otherwise specified by written agreement.
9. The Association may charge a "returned check charge" of fifty dollars (\$50.00) for all checks returned as "non-negotiable", "insufficient funds" or any other reason.
10. All above-referenced notices will be mailed to the record owner(s) at the last mailing address provided in writing to the Association by such owner(s).
11. The mailing address for overnight payment of assessments is: Autumn Terrace at William Owners' Association, c/o Compass Management Group, Inc., 77 Las Colinas, San Jose, CA 95119
12. The Board of Directors of the Association may revise this policy, either generally or on a case-by-case basis, if it finds good cause to do so.

PROVIDING GENERAL DELIVERY OR NOTICE

Civil Code § 4045 requires that Homeowners be advised of the location, if any, designated for posting of a general notice. **Autumn Terrace at William Owners' Association** has designated the Association website accessible through www.GoCompass.com (member login required) as the location for the posting of a general notice.

DELIVERY OF DOCUMENTS TO THE ASSOCIATION **(Civil Code Section 4035)**

The managing agent of the Association, Compass Management Group, Inc., has been designated as the person to receive documents on behalf of the Association.

MEMBER'S RIGHT TO RECEIVE GENERAL NOTICES BY INDIVIDUAL DELIVERY **(Civil Code Section 4045(b))**

If a member requests to receive general notices by individual delivery, all general notices to that member, given under section 4045 of the Civil Code, shall be delivered pursuant to Civil Code section 4040.

EXHIBIT B

AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION
OPERATING RULES
HEARING PROCEDURE AND FINES POLICY

1. **Notice and Hearing Procedures.** The following notice and hearing procedures will be used whenever the Board meets to consider an alleged violation which could result in disciplinary action against a Member.
 - a. ***Notice of Hearing.*** Notice of the hearing will be sent at least fifteen (15) days prior to the hearing and will be given either personally or by prepaid first-class mail to the most recent address shown in the Association's records. The notice shall contain, at a minimum, the date, time, and place of the meeting, the nature of the alleged violation for which a Member may be disciplined, and a statement that the Member has a right to attend and may address the Board at the meeting.
 - b. ***Opportunity to Be Heard.*** Members have the right to send a letter, send a representative, or appear in person to present evidence as to why they should not be disciplined. Members also have the right to bring an attorney with them to advise them or to speak on their behalf. The hearing will be held in executive session unless the member requests otherwise.
 - c. ***Rescheduled Meetings.*** Upon timely, written request and for worthy cause, an accused party may be granted a continuance to a new hearing date. In the event a person fails to appear for a hearing, the Board will review the evidence presented and make its decision accordingly.
 - d. ***Correction of Violation.*** In the event the violation is corrected prior to the hearing date, the Board may, if appropriate, discontinue the proceedings.
 - e. ***Notice of Decision.*** Within fifteen (15) days of the Board's decision, the Member will be given written notice of the decision.
 - f. ***Conflicts of Interest.*** If members of the Board have a conflict of interest (i.e., they filed the complaint, or the complaint was filed against them) such persons may not vote on the issue.
2. **Remedies for Enforcement.** To enforce the governing documents, the Board may impose one or more of the remedies described below as it deems appropriate to be effective. The selection of one remedy does not preclude the Association's right to pursue others.
 - a. Warning letters
 - b. Monetary penalties
 - c. Suspension of membership privileges
 - d. Alternative dispute resolution (arbitration or mediation)
 - e. Litigation

Failure to pay fines within thirty (30) days may result in legal action to collect the fines. If the Association is forced to retain an attorney to ensure compliance, collect fines, etc., the owner shall be liable for those attorney fees and all related expenses in addition to the fines.

3. **Fine Schedule.** Violation of the association's governing documents may result in a warning letter, fine, suspension of privileges and/or continuing fines as the Board may determine to be appropriate to the situation and as provided for in the fine schedule below. In addition to fines, the Board may file a lawsuit seeking judicial relief. The imposition of penalties and suspension of privileges will be subject to notice and hearing procedures.

1st Violation, warning or fine up to \$150

2nd Violation, same offense: \$150 to \$300

3rd Violation, same offense: \$150 to \$500

Additional Violations, same offense: up to \$750

Safety Violations may receive a warning or a fine up to \$1,000.00, depending on the violation

Continuing Violations: fines up to \$500 per day may accrue until the violation is cured

The Association may pursue one or more remedies simultaneously. The selection of one remedy does not preclude the Association's right to pursue others.

Autumn Terrace at William Owners' Association Election Rules

These Election Rules apply to all Member votes undertaken by AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION ("Association"). These Election Rules shall be effective on the date of adoption, shall supersede any other rules of the Association affecting voting or elections, and shall remain in effect until modified by the Board of Directors (the "Board").

ARTICLE 1 MEMBER VOTING RIGHTS

1.1 Member Voting Rights. Notwithstanding anything to the contrary in the Association's governing documents, all Members shall be entitled to vote, and no Member shall be denied a ballot for any reason other than not being a Member. "Member" means a person who holds legal title to the separate interest (i.e., is named in the recorded deed for the separate interest property). The "separate interest" property means the lot owned by a Member.

1.1.1 Entity Owners. In the case of a Member that is not a natural person (such as a trust, corporation or other entity), the vote of such Member may be cast by any authorized representative of the Member designated by written notice to the Association.

1.1.2 General Power of Attorney. A person with general power of attorney for a Member, who has provided satisfactory evidence thereof, shall not be denied a ballot and said ballot shall be counted if returned by the deadline for voting.

1.2 Voter List. The Association shall maintain a "Voter List" which shall include for each separate interest: the Member's name; voting power; and, unless the Member has "opted out" of the public distribution of their address, the physical address of the Member's separate interest, or the parcel number, or both, and the mailing address of the Member if it is different than the physical address of the separate interest (or if the parcel number is used). Upon request, the Association shall permit Members to verify the accuracy of their individual information on the Voter List at least 30 days before the ballots are mailed. The Member shall report any errors to the Inspector of Elections who shall make the correction within two business days. The Association may, at its discretion, report any known errors to the Inspector of Elections. The Voter List shall be retained as "association election materials" as required by law.

1.3 Voting Power of Each Membership. On each matter before the Members, only one (1) vote shall be cast for each separate interest. Once a ballot is received by the Inspector of Elections, it may not be rescinded. Votes on behalf of a separate interest owned by more than one person or entity shall be treated as a single member for voting purposes. The vote for such separate interest shall be exercised as the owners among themselves shall determine, but in no event shall more than one (1) vote be cast with respect to any separate interest. If the joint owners of a separate interest are unable to agree among themselves as to how their vote is to be cast, they shall lose their right to vote on the matter in question. If any joint owner of a separate interest casts a vote representing the separate interest, it will thereafter be conclusively presumed for all purposes that such owner was acting with the authority and consent of the other owners of that separate interest.

1.4 Cumulative Voting. Cumulative voting is permitted in the election of directors.

1.5 Proxies. Proxies may be used by the Members at a membership meeting only as authorized in the Bylaws. In any election or vote of the Members conducted by the Association,

only official ballots issued by the Association shall be counted as votes. Proxies are not ballots and are not valid as votes in any election or vote conducted by the Association.

1.6 General Power of Attorney. A Member may delegate their voting rights to a third party by use of a general power of attorney that conforms to the laws of the state in which the power is conveyed. The power of attorney must be returned to the Association at or before the casting of the ballot for which voting rights have been delegated.

ARTICLE 2 VOTING PROCEDURE

2.1 Notice of Election Information. At least thirty (30) days before the ballots are distributed, the Association shall provide general notice of all of the following: (i) the date and time by which, and the physical address where, ballots are to be returned by mail or handed to the Inspector of Elections; (ii) the date, time, and location of the meeting at which ballots will be counted; and (iii) the "Candidate Registration List," as defined in Section 3.3 below.

2.2 Distribution of Ballots. For a vote on any of the matters specified in *Civil Code* section 5100(a), voting by the Members shall be conducted by secret ballot using a "double envelope system" as described in *Civil Code* section 5115(a). Ballots and two envelopes with instructions on how to return ballots shall be mailed by first-class mail or delivered to all Members in such vote or election. Ballots shall be distributed a minimum of thirty (30) days prior to the deadline for voting. These matters are: (i) elections regarding assessments legally requiring a Member vote, (ii) election and removal of directors, (iii) amendments to the governing documents, and (iv) grants of exclusive use of common area property pursuant to *Civil Code* section 4600.

For votes on any other matter, votes may be by secret ballot or by written ballot, and ballots may be distributed a reasonable time (which may be less than thirty (30) days) prior to the deadline for voting.

2.3 Election by Acclamation. If, as of the published deadline for receiving nominations, the number of qualified candidates for election to the Board is not more than the number of directors to be elected, then the qualified candidates shall be declared elected and shall take office at the first Board meeting following the deadline for nominations or, if later and an annual meeting is held, then at the first Board meeting after the annual meeting. Written notice of the election shall be given to the Members.

2.4 Frequency of Director Elections. The Association shall hold an election for a seat on the Board at the expiration of the corresponding director's term or sooner if required by the Bylaws.

2.5 Extension of Voting. The Board shall be entitled to extend the deadline for the return of ballots one or more times due to the lack of a quorum or for such other reason(s) as the Board deems reasonable and prudent.

2.6 Tabulation and Observation. The Inspector of Elections shall open all ballots and tabulate the votes at a properly noticed open meeting of the Board or Members in a manner that allows the Members to view the opening and tabulation. The Inspector of Elections may appoint additional persons to assist in the opening of ballots and tabulation of votes. Observers must remain at least five (5) feet from the area of opening and tabulation and not communicate, harass, or otherwise interfere with the Inspector of Elections and/or those assisting the Inspector of Elections in any manner whatsoever. The Inspector of Elections or the Board shall have the power and authority to cause the removal of any person who interferes with or disrupts the voting, opening or tabulating process. The Inspector of Elections may suspend the opening and tabulation process if anyone causes interference with or disrupts the process.

2.7 Reporting Election Results. The tabulated results of the election shall be promptly reported to the Board and shall be recorded in the minutes if reported at a meeting of the Board or recorded in the minutes of the next meeting of the Board if reported at a Member meeting. Within fifteen (15) days of the election, the Board shall give the Members general notice of the tabulated results of the election.

2.8 Retention of Association Election Materials. "Association election materials" shall mean the returned ballots, signed voter envelopes, the Voter List, proxies, and the Candidate Registration List. The association election materials shall at all times be in the custody of the Inspector of Elections or at a location designated by the Inspector of Elections for a period of one (1) year after the Inspector of Elections notifies the Board and Members of the election results, at which time custody shall be transferred to the Association. The Association shall retain the association election materials for the current fiscal year and prior two (2) fiscal years. At the expiration of the retention period all association election materials may be destroyed.

ARTICLE 3 CANDIDATES FOR THE BOARD AND NOMINATION PROCEDURES

3.1 Qualification of Candidates. Candidates for the Board must be Members at the time of their nomination and (i) must meet any other qualifications or restrictions set forth in these Election Rules and (ii) must meet any other qualifications or restrictions set forth in the Bylaws so long as they do not conflict with these Election Rules. In the case of a Member that is not a natural person (such as a corporation or other entity), the entity Member shall have the power to appoint a natural person as the "Member" for purposes of director elections. The Association shall disqualify a nominee for the Board for any of the following reasons:

3.1.1 The nominee is not a Member.

3.1.2 If the nominee, if elected, would be serving on the Board at the same time as another owner of the same separate interest and the other person is either properly nominated for the current election or is an incumbent director.

3.1.3 If the nominee, at the time of nomination, is delinquent in the payment of regular and/or special assessments. A nominee shall not be considered "delinquent" if the delinquency relates to the payment of fines, fines renamed as assessments, collection charges, late charges, or costs levied by a third party and/or if the nominee: (a) has paid the regular or special assessment under protest; (b) has entered into a payment plan for repayment of the delinquent assessments and is not delinquent in payments due under the plan; or (c) the nominee has requested and has not been provided an opportunity to engage in internal dispute resolution.

3.1.4 If the nominee has been a member of the Association for less than one year.

3.1.5 If the nominee discloses, or if the Association is aware or becomes aware of, a past criminal conviction that would, if the Member was elected, either prevent the Association from purchasing the fidelity bond coverage required by Civil Code section 5806 or terminate the Association's existing fidelity bond coverage.

3.2 Nominations.

3.2.1 Solicitation of Candidates. At least thirty (30) days before the deadline for submitting a nomination, the Association shall provide general notice of the procedure and deadline for submitting a nomination for the Board. Any Member who satisfies the qualifications and is not otherwise prohibited from running for the Board may place their name in nomination for the Board by submitting the

nomination before the published deadline for receiving nominations. In addition, the Board may recruit qualified candidates and/or may appoint a nominating committee to nominate qualified candidates.

3.2.2 No Write-Ins. No “write-in” candidates shall be permitted on the ballots in the election of directors.

3.3 Candidate Registration List. The “Candidate Registration List” shall mean the list of candidates who will appear on the ballot. Upon request, the Association shall permit Members to verify the accuracy of their individual information on the Candidate Registration List at least thirty (30) days before the ballots are mailed. The Member shall report any errors to the Inspector of Elections who shall make the correction within two business days. The Association may, at its discretion, report any known errors to the Inspector of Elections. The Candidate Registration List shall be retained as “association election materials” as required by law.

3.4 Notice of Known Candidates. The names of all persons on the Candidate Registration List shall be set forth on the ballot.

3.5 Candidacy Statements. Any candidate who wishes to submit a candidacy statement may only do so using the Association’s authorized form. The content of any candidate statement shall be limited to a statement of the candidate’s qualifications to serve as a director.

3.6 Directors May Not be Delinquent. Any Member serving on the Board shall be current in the payment of regular and special assessments. A director shall not be considered “delinquent” in the payment of assessments if the delinquency relates to the payment of fines, fines renamed as assessments, collection charges, late charges, or costs levied by a third party and/or if the director: (a) has paid the regular or special assessment under protest; (b) has entered into a payment plan for repayment of the delinquent assessments and is not delinquent in payments due under the plan; or (c) has requested and has not been provided an opportunity to engage in internal dispute resolution.

ARTICLE 4 USE OF ASSOCIATION MEDIA AND CAMPAIGNING

4.1 Access to Association Media – Candidates for the Board. The Board may, but is not required to, make Association media (e.g., newsletter, notice board, website, or other notices provided to the Members) available to qualified candidates running for election to the Board for purposes that are reasonably related to the election in which that candidate is running. If the Board allows any candidate access to Association media, then all qualified candidates shall be allowed equal access to the same media.

4.2 Access to Association Media – Other Matters. If the Board utilizes Association media to advocate a point of view on any matter (other than election of directors) that requires Member approval or allows any Member access to Association media for that purpose, then all Members advocating a different point of view shall be allowed equal access to the same media. The Board shall not be required to allow access to more than one Member advocating the same point of view.

4.3 “Equal Access.” “Equal access” shall mean publication of written statements not to exceed a predetermined length as determined by the Board. The Board shall not edit or redact any statement but shall not be required to publish any statement that exceeds the predetermined length restrictions. Modifications to formatting may be made so as to allow for space and/or media restrictions. If any formatting modifications should become necessary, they shall be applied equally to all submissions and at no time shall any formatting be applied that may signify a preference or partiality.

4.4 Responsibility for Content. All statements published in Association media pursuant to the “equal access” rules must identify the author or proponent. No anonymous statements will be permitted. The author and/or proponent of any statement or point of view shall be solely responsible and liable for the content of their statements. The Association shall not be responsible or liable for the content of any statement published pursuant to the “equal access” rules.

4.5 Campaigning. No Association funds shall be expended for the purposes of campaigning in connection with any vote or election other than those funds specifically required to distribute required correspondence, notices, or forms that may contain the names of candidates or necessary information on the issues being voted upon, or as is otherwise deemed by the Board to be necessary or appropriate for the fair and reasonable conduct of a vote or election, or to the extent necessary to comply with duties of the Association imposed by law. Specifically excluded is the expenditure of Association funds for the purposes of expressly advocating approval, election, or defeat of any candidate.

ARTICLE 5 USE OF COMMON AREA MEETING SPACE

5.1 Access to Common Area Meeting Space – Campaigning by Candidates for the Board. The Board shall ensure that during a campaign all qualified candidates for election to the Board are given access to common area meeting space (if any) upon request, at no cost, for purposes reasonably related to their campaigns.

5.2 Access to Common Area Meeting Space – Other Matters. Whenever the Board places a matter before the Members which requires Member approval, the Board shall ensure that Members advocating a point of view on the matter are given access to common area meeting space (if any) upon request, at no cost, for purposes reasonably related to advocating their point of view, whether or not they agree with the point of view advocated by the Board on the matter at issue.

5.3 All Access. Any use of the common area facilities for the purposes described above shall be regulated by any existing rules and regulations for such use. The Board, in its sole discretion, may reasonably limit a candidate’s or Member’s access to common area facilities in order to facilitate equal access for other candidates and Members, and so as not to unreasonably interfere with other Members’ rights to use such facilities.

ARTICLE 6 INSPECTOR OF ELECTIONS

6.1 Appointment of Inspector of Elections. Whenever there is a membership vote or election, the Board shall appoint one (1) or three (3) Inspectors of Elections, hereinafter individually or collectively referred to as the “Inspector of Elections,” whose powers and duties shall be as set forth in Civil Code section 5100 *et seq.* The Board shall have the power to remove an Inspector of Elections who ceases to meet the required qualifications, is unable or unwilling to perform their duties, or for other good reason, and to appoint a new Inspector of Elections in their place.

6.2 Qualification of Inspector of Elections. The Inspector of Elections may be any persons the Board reasonably believes to be independent with respect to the matter or matters being voted on and may include Members of the Association, but may not be (i) a member of the Board or a candidate for election to the Board or be related to a current member of the Board or a candidate for election to the Board or (ii) the Association’s manager, accountant, legal counsel, or any other person, business entity, or subdivision of a business entity that is employed by or under contract with the Association to provide compensable services to it at and/or after commencement of the election process other than serving as Inspector of Elections.

6.3 Payment to Inspector of Elections. The Board may authorize payment of Association funds to any third party appointed to serve as Inspector of Elections; however, no payment may be authorized for any Member appointed to serve as the Inspector of Elections.

6.4 Duties of the Inspector of Elections. The Inspector of Elections shall be responsible to perform their duties as follows:

- 6.4.1 Perform those tasks enumerated in Civil Code section 5110(c); and
- 6.4.2 Perform all duties impartially, in good faith, to the best of the Inspector of Election's ability, as expeditiously as is practical, and in a manner that protects the interest of all Members of the Association; and
- 6.4.3 Make any necessary corrections to the Candidate Registration List or the Voter List within two business days of being informed of an error by a Member or by the Association; and
- 6.4.4 Deliver (or cause to be delivered) the following documents to the members at least thirty (30) days before an election: (a) the ballot(s) by first-class mail and (b) a copy of these Election Rules by (i) individual delivery or (ii) by posting the internet website address where these Election Rules may be accessed on the ballot together with the phrase in at least 12-point font, "The rules governing this election may be found here: [insert internet website address]"; and
- 6.4.5 Retain the association election materials as provided herein.

6.5 Indemnification of Inspector of Elections; Liability Insurance. The Association may, at the Board's sole discretion, indemnify the Inspector of Elections to the fullest extent provided by law. The Association shall have the power to purchase and maintain insurance to protect it and/or the Inspector of Elections against any liability asserted against the Association and/or against the Inspector of Elections arising out of the Inspector of Elections' acts and/or omissions relating to any Association vote or election.

ARTICLE 7 AMENDMENTS

The Board may amend these Election Rules from time to time except that these Election Rules may not be amended less than ninety (90) days prior to an election unless that amendment is merely to conform to non-discretionary changes in the law.

I, Bruce Strand, am the Secretary of the AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION, and certify that these Election Rules were duly adopted by the Board of Directors of the Association and came into effect on the 25 day of March, 2020.


Secretary

3/25
Date

4814-5456-9652, v. 1

Exhibit "B"

Adopted: October 1, 2006

AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION

GUIDELINES FOR SATELLITE DISH AND ANTENNA INSTALLATION AND MAINTENANCE

This document sets forth the Autumn Terrace at William Owners' Association's policies for the installation and maintenance of satellite dishes and television antennas within the Autumn Terrace at William development, pursuant to Section 207 of the federal Telecommunications Act of 1996 and the Declaration of Covenants, Conditions and Restrictions of Autumn Terrace at William.

ANTENNA TYPE AND SIZE

For the purposes of these Guidelines, the term "antenna" includes any direct broadcast system (DBS) satellite dish, wireless cable antenna system (MDS or MMDS) or television broadcast antenna system (TVBS) and any component of or addition to such antenna, including, without limitation, poles, masts, brackets, cables, or wiring.

These Guidelines apply to DBS, MDS and MMDS antennas designed primarily for video reception that are one (1) meter or less in diameter or diagonal measurement, and to TVBS antennas sufficient in dimension to receive an acceptable quality signal in the viewing area. Larger antennas or antennas used for purposes other than for video signals are not permitted.

NOTIFICATION

Within fourteen (14) days of the proposed antenna installation date, owners are asked to notify the Association's Architectural Review Committee ("Committee") of their intent to install an antenna. Owners are encouraged to work with the Committee to determine the most suitable location for the antenna pursuant to these Guidelines.

INSTALLATION

An antenna may only be installed on a lot *in the least obtrusive location possible that does not unreasonably delay the antenna's installation, unreasonably increase the cost of its installation, maintenance or use, or unreasonably interfere with the user's ability to obtain an acceptable quality signal* ("preferred location"). Depending on the configuration of a particular lot, the Association's preferred location might be ground mounting, behind chimney chases, in rear or side yards, or on the portions of roofs or building surfaces that face away from streets, common areas or neighboring lots.

If an acceptable quality signal can be received by placing the antenna inside a residence, without an unreasonable increase in delay or cost, then indoor installation is preferred.

Safety considerations require that no antenna may be installed on a lot in such a location or in such a manner as to interfere with the capacity and flow of any storm drainage improvement or with any established drainage pattern.

Any mast or pole extending more than 12 feet above the lot's roofline shall require the prior written approval of the Committee and, if required by the local jurisdiction, a use permit. **No** mast or pole may be erected nearer to a lot line than the total height of the antenna above the roof. Masts or poles may not be located near power lines.

To the maximum extent reasonably possible, wiring or cabling shall be installed so as to be minimally visible and blend into the material to which it is mounted or placed. Where not unreasonable to do so, the antenna shall be painted to blend into the background to which it is mounted or placed, and masts shall be painted to match the antenna mounted on it.

The Committee may require the owner to install screens or landscaping, at the owners expense that do not unreasonably delay the antenna's installation, unreasonably increase the cost of its installation, maintenance or use, or unreasonably interfere with the user's receipt of an acceptable quality signal.

All antenna installations shall be made in accordance with applicable building, fire, and electrical and related codes. No antenna shall be permitted that unreasonably interferes with the reception of video or radio signals within another lot or, if applicable, the common area.

INSPECTION

The Committee may, following written notice to the owner, enter the owner's lot to inspect the antenna to ensure that it was installed in the least obtrusive location and manner possible. If the Committee determines that the antenna could have been installed in a preferred location, the Committee may require the owner, at the owner's expense, to move the antenna to that location or to change the manner of its installation.

MAINTENANCE, REPAIR AND REMOVAL

The owner shall be responsible, at the owner's sole expense, for the maintenance and repair of any antenna and for any damages those results from the installation or relocation of any antenna.

It shall be the owner's responsibility to remove the antenna if, in the sole discretion of the Association, the owner fails to maintain the antenna to the minimum architectural standards in effect for the development, if the antenna creates a safety hazard, or if for any reason the Association must maintain, repair, or replace the area where the antenna is installed. Except in emergency situations, the Association shall notify the owner at least seventy-two (72) hours in advance of the need to remove the antenna. The cost of removing and, if applicable, replacing the antenna shall be the responsibility of the owner.

Should an owner fail to remove the antenna upon the Association's request, the Association may, to the extent and in the manner permitted in the governing documents, enter the owner's lot and remove the antenna. The Association shall not be responsible for any damage to the antenna or loss of video signal incurred in removing the antenna. The owner shall be responsible for any expenses the Association incurs in removing the antenna, and the Association may recover such expenses in any manner allowed by law or the governing documents. If the Association must remove the antenna, the Association shall not be responsible for replacing it.

Adopted: May 15, 2008

PRELIMINARY

**AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION
OPERATING RULES
YARD EASEMENT AND ACCESS POLICY**

As defined in the Autumn Terrace at William Declaration of Covenants Conditions and Restrictions (CC&Rs,) this policy reiterates standards that are in effect and binding upon all owners who have either a dominant or servient share in a yard easement.

Legal Effects: The CC&Rs document is legally binding and is recorded in the County of Santa Clara. Refer to Sections 2.18, 2.22, 2.26, 2.34, and 2.42 for Applicable general "Definitions." Specific "Definitions" are in Sections 3.5.6, 3.5.14, 3.5.16, and 3.5.19. Applicable Definitions are not limited to these summary lists.

Use of the Yard Easement - The Owner of the Lot that has a yard easement ("Dominant Tenement") over the adjacent Lot has a limited right to use the area of the Yard Easement. See Sections 4.19 and 3.5.19.

Restrictions on Use of the Yard Easement – Improvements built or placed in the Yard Easement Area are subject to all civic codes, all provisions of the HOA Architectural requirements in CC&Rs Article XI, and the following restrictions as stated in Section 4.19.3.

- a) No Improvement other than overhanging eaves of a residence, down spouts, storm drainage improvements and landscaping may be built or placed within the Yard Easement.
- b) Nothing may be attached to or placed or thrown against the residence on the Servient Tenement by owners or residents of the Dominant Tenement.
- c) No combustible or flammable materials may be placed or stored in the Yard Easement, except for portable barbecues.
- d) Nothing, including dirt or fill, may be placed against the residence on the Servient Tenement.
- e) All drainage and irrigation installed by the owner of the Dominant Tenement must drain all water away from the foundation of the residence

on the Servient Tenement. The grade and drainage may not be altered in any manner that may drain water toward or trap water against the residence on the Servient Tenement.

- f) The Owner of the Dominant Tenement must maintain all improvements installed within the Yard Easement, including the fence that encloses the yard.
- g) The Owner of the Dominant Tenement shall not move or otherwise alter the course of the fence that encloses the Yard Easement area.
- h) Nothing may be placed upon, over, or under the Yard Easement that will interfere with the rights of the Servient Tenement to access and maintain the exterior of the Servient owner's residence.

Natural Light and Air Flow – Nothing may be placed upon, over, or under the Yard Easement that will interfere with the rights of the Servient Tenement to receive natural light and/or flow of air through windows facing the Yard Easement.

Emergency Exit – Nothing may be placed upon, over, or under the Yard Easement that will interfere with the rights of either the Dominant or the Servient Tenement to Emergency Exit via the Yard Easement.

Maintenance of the Yard Easement – The Dominant Owner of the Lot that has a yard easement must maintain the Yard Easement area. See Section 5.3.10.

Entry to the Yard Easement – As stated in Section 4.19.2, the Owner of the adjacent Lot ("Servient Tenement") is permitted to enter the yard easement during daylight hours to perform necessary maintenance on the Servient Residence on the Adjacent Lot. This statement does not require entry to the garage or residence of the Dominant owner.

Required Notice for Entry to the Yard Easement – Section 4.19.2 requires that the Servient owner must provide advance notice to the Dominant Owner. Notice may be verbal or written. Notice must be given at least 96 hours in advance. In a true emergency, no notice is required.

Disputes – Any dispute between the Dominant and Servient owners shall be submitted to the Board for resolution. The Board's decision shall be final. See Section 4.19.4.

Adopted: September 5, 2007

**AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION
OPERATING RULES
SAFETY IN PRIVATE DRIVES**

To ensure the safety and well being of all residents and visitors, all Private Drives are restricted ***only*** to the intended purpose, that is, vehicles entering and leaving the Private Drive. This rule is in effect 24 hours per day.

Owners are responsible for all members of their household and visitors to know and obey the Association's rules.

- ❑ **The Private Drives may not be used as play areas at any time.**
- ❑ **Vehicles may not be parked in the Private Drives.**
- ❑ **Vehicles are limited to 10 to 15 minutes for loading and unloading in Private Drives. Vehicles may not be left unattended.**

These rules are in compliance with the Association's CC&Rs governing document.

Section 4.16 reads as follows: "... There shall be no obstruction of any part of the Common Area. ... No Owner shall permit anything to be physically done in or kept in the Common Area or any other part of the Project which might result in the cancellation of insurance on any part of the Common Area, which would interfere with rights of other Owners, or which would be a nuisance, noxious, harmful or unreasonably offensive to other Owners..."

Section 4.10.3 prohibits parking in Private Drives.

“Exhibit B”

**AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION
MISCELLANEOUS
OPERATING RULES**

WIND CHIMES – No wind chimes or other similar noise-producing ornaments or items shall be attached to the exterior of any Residence or installed on any Lot.

STORAGE OF TRASH CANS – All garbage cans and recycling containers must be stored behind the fence or in the garage out of sight, except on the night before and the day of trash pick-up.

NOISE – The noise level must be kept to a level that does not disturb your neighbors.

GARBAGE – Residents must remove all trash or debris that they bring into the common area. The common area is to be left in the same condition or better than when Residents came.

Adopted: September 5, 2007

**AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION
OPERATING RULES
FENCE STAIN POLICY**

The Board of Directors has determined that it is in the best interest of the community to set standards for all fences that are visible from outside the Lot. This standard will set a level of continuity and retain the aesthetic quality of the community.

The following standards are pre-approved and do not require prior architectural approval:

- Transparent stain that enhances and preserves the natural wood color is allowed.
- Paint or any opaque treatment is allowed only in natural wood color.

There is no requirement mandating interior fence staining unless an interior fence treatment is visible by neighbors and deemed offensive by the Board of Directors.

Date Adopted: October 1, 2006

Exhibit "B"

**AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION
OPERATING RULES
HOLIDAY DECORATIONS**

WHEREAS, the Board of Directors of the AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION, will from time to time, establish policy; and,

WHEREAS, it is in the interest of the members of the Association to have the proposed policy in place; and,

WHEREAS, the Declaration of Covenants, Conditions and Restrictions (hereinafter called "CC&R's") and Bylaws allow the Board to adopt such rules as are consistent with the CC&R's and Bylaws,

NOW THEREFORE LET IT BE RESOLVED, that Holiday Decorations may be displayed no sooner than four (4) weeks prior to the holiday and must be removed no later than four (4) weeks after the holiday.



Kirk Miller Insurance Agency, Inc.
Offices in San Diego, CA and Pleasanton, CA
San Diego Phone: 858.240.2593
Pleasanton Phone: 925.334.5700
CA #0K05931 | OR #8787714 | NV #764468

Annual Disclosure

Autumn Terrace at William Owners' Association

Property Insurer		Farmers Insurance Group	
Coverage Limit:	\$ 293,500	Effective	5/17/2024
Deductible:	\$ 1,000	Expires:	5/17/2025
General Liability Insurer		Farmers Insurance Group	
Coverage Limit:	\$ 3,000,000	Effective	5/17/2024
Deductible:	\$ -	Expires:	5/17/2025
Fidelity / Crime Insurer		Farmers Insurance Group	
Coverage Limit:	\$ 225,000	Effective	5/17/2024
Deductible:	\$ 1,000	Expires:	5/17/2025
Directors & Officers Liability Insurer		Farmers Insurance Group	
Coverage Limit:	\$ 1,000,000	Effective	5/17/2024
Deductible:	\$ 1,000	Expires:	5/17/2025
Workers Compensation Insurer		Farmers Insurance Group	
Coverage Limit:	\$ 1,000,000	Effective	5/17/2024
Deductible:	\$ -	Expires:	5/17/2025
Umbrella / Excess Liability Insurer		Federal Insurance	
Coverage Limit:	\$ 5,000,000	Effective	5/17/2024
Deductible:	\$ -	Expires:	5/17/2025

This summary of the association's policies of insurance provides only certain information, as required by Section 5300 of the Civil Code, and should not be considered a substitute for the complete policy terms and conditions contained in the actual policies of insurance. Any association member may, upon request and provision of reasonable notice, review the association's insurance policies and, upon request and payment of reasonable duplication charges, obtain copies of those policies. Although the association maintains the policies of insurance specified in this summary, the association's policies of insurance may not cover your property, including personal property or real property improvements to or around your dwelling, or personal injuries or other losses that occur within or around your dwelling. Even if a loss is covered, you may nevertheless be responsible for paying all or a portion of any deductible that applies. Association members should consult with their individual insurance broker or agent for appropriate additional coverage.

Order: ZDT3W9PY5
Address: 825 S 22nd St
Order Date: 04-11-2025
Document not for resale
HomeWiseDocs



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)
05/06/2024

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Kirk Miller Insurance Agency, Inc. 10636 Scripps Summit Ct, Ste 110 San Diego, CA 92131-3965 (858) 400-4504	CONTACT NAME: Robert Gonzalez PHONE (A/C, No, Ext): 858-400-4504 FAX (A/C, No): 858-875-0667 E-MAIL ADDRESS: hoacerts@kirkmillerinsurance.com														
INSURED Autumn Terrace at William c/o Compass Management Group, Inc. 77 Las Colinas Lane San Jose, CA 95119	<table border="1"> <thead> <tr> <th>INSURER(S) AFFORDING COVERAGE</th> <th>NAIC #</th> </tr> </thead> <tbody> <tr> <td>INSURER A: Truck Insurance Exchange</td> <td>21709</td> </tr> <tr> <td>INSURER B: Mid Century Insurance Company</td> <td>21687</td> </tr> <tr> <td>INSURER C: Federal Insurance Company</td> <td>20281</td> </tr> <tr> <td>INSURER D:</td> <td></td> </tr> <tr> <td>INSURER E:</td> <td></td> </tr> <tr> <td>INSURER F:</td> <td></td> </tr> </tbody> </table>	INSURER(S) AFFORDING COVERAGE	NAIC #	INSURER A: Truck Insurance Exchange	21709	INSURER B: Mid Century Insurance Company	21687	INSURER C: Federal Insurance Company	20281	INSURER D:		INSURER E:		INSURER F:	
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INSURER E:															
INSURER F:															

COVERAGES

CERTIFICATE NUMBER:

REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSR	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
A	GENERAL LIABILITY			60674-20-25	05/17/2024	05/17/2025	EACH OCCURRENCE \$ 3,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 75,000 MED EXP (Any one person) \$ 5,000 PERSONAL & ADV INJURY \$ 3,000,000 GENERAL AGGREGATE \$ 6,000,000 PRODUCTS - COMP/OP AGG \$ 3,000,000 D&O Claims Made \$ 1,000,000	
	☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR ☒ Directors & Officers GEN'L AGGREGATE LIMIT APPLIES PER: ☒ POLICY ☐ PRO-JECT ☐ LOC			60674-20-25	05/17/2024	05/17/2025	COMBINED SINGLE LIMIT (Ea accident) \$ 2,000,000 BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$	
A	AUTOMOBILE LIABILITY			60674-20-25	05/17/2024	05/17/2025	ANY AUTO ALL OWNED AUTOS ☒ HIRED AUTOS SCHEDULED AUTOS ☒ NON-OWNED AUTOS	
C	UMBRELLA LIAB ☒ OCCUR EXCESS LIAB ☒ CLAIMS-MADE DED RETENTION \$			PENDING	05/17/2024	05/17/2025	EACH OCCURRENCE \$ 5,000,000 AGGREGATE \$ 5,000,000 \$	
B	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y/N	N/A	A09599288	05/17/2024	05/17/2025	☒ WC STATUTORY LIMITS ☐ OTHER E.L. EACH ACCIDENT \$ 1,000,000 E.L. DISEASE - EA EMPLOYEE \$ 1,000,000 E.L. DISEASE - POLICY LIMIT \$ 1,000,000	
A	Common Area Coverage (total)			60674-20-25	05/17/2024	05/17/2025	\$ 293,500 \$ 1,000 Ded	
A	Crime/Fidelity			60674-20-25	05/17/2024	05/17/2025	\$ 225,000 \$ 1,000 Ded	
A	Mech Breakdown/Ordinance Law			60674-20-25	05/17/2024	05/17/2025	Included	

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (Attach ACORD 101, Additional Remarks Schedule, if more space is required)

General Certificate, Multiple Addresses, San Jose, CA 95116

Planned Unit Development - Common Area Coverage Only at 100%. Owners are to obtain individual coverage.(105 Units).

CERTIFICATE HOLDER

CANCELLATION

Compass Management Group, Inc.
 .
 77 Las Colinas Lane
 San Jose, CA 95119
 Loan Number: .

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

Handwritten signature

Order: ZD
 Address: 825 S 22nd St
 Order Date: 04-11-2025

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MEMO

TO: Mortgage Processors

Visit www.insuremyhoa.com for more info...

FROM: Kirk Miller Insurance Agency, Inc.

10636 Scripps Summit Ct #110
San Diego, CA 92131-3965
hoacerts@kirkmillerinsurance.com
CA DOI #0K05931

The Master Insurance Policies for this community include the following:

- 1) Building Ordinance or Law Coverage / Contingent Liability
 - a) Loss In Value
 - b) Increased Cost of Demolition
 - c) Increased Cost of Construction
- 2) Separation of Insureds (Severability of Interests)
- 3) Property Management is included as an insured on;
 - a) General Liability (CGL)
 - b) Directors & Officers (D&O)
 - c) Employee Dishonesty/Fidelity (Crime)
- 4) Property Coverage is Special Form/All-Risk unless otherwise indicated;
 - a) Wind/Hail is included and not subject to difference provisions.
 - b) Inflation Guard is included with Farmers/Truck Insurance Exchanges and Mid-Century.
 - c) 100% is Indicative of a current Building Reconstruction Cost valuation on file with the agency.
- 5) Mechanical Breakdown (Boiler & Machinery) is included when indicated at the Building Limit.
- 6) Fidelity/Crime coverage is inclusive of Computer Fraud and Funds Transfer Fraud in compliance with §5806
- 7) Policy Cancellation Provisions:

There is a 10-day notice of cancellation for non-payment of premiums, and a 30-day notice of cancellation for all other reasons to the Association Insurance Trustee.

Other Information:

- "GRC" means Guaranteed Replacement Cost (coinsurance waived)
- "AAV" means Agreed Amount Value (coinsurance waived)
- "RCV" means Replacement Cost Value (coinsurance does not apply when insured at 100%)
- "ERC" means Extended Replacement Cost

Unit Owners Coverage Information (Coverage Per Governing Documents)

- "AI" or "All-In" means including betterments and improvements
- "SE" or "Single Entity" means including Unit Interiors, but excluding betterments and improvements
- "BW" or "Bare-Walls" means excluding unit interiors beyond unfinished surfaces
- "PUD" or "Planned Unit Development" typically means common area coverage only

Our Agency will provide an Interior Brokers Price Opinion upon request at no charge for HO6 policies. The amount of coverage necessary under an HO6 insurance policy would be determined as a result of collaboration between the insurer and the borrower. The amount of insurance coverage determined in this manner may or may not be based on a percentage of the condo unit's appraised value.

To obtain this free HO6 price opinion and quote, please send your request with the following information by email to info@kirkmillerinsurance.com with property appraisal including interior photos.

EXHIBIT "B"

Date Adopted: October 1, 2006

AUTUMN TERRACE AT WILLIAM OWNERS' ASSOCIATION

**Operating Rules
Architectural Review Procedure**

The Board of Directors approves revisions to the Architectural Standards and Guidelines based upon the recommendations of the Architectural Review Committee (ARC.) Architectural Standards may or may not be created.

- 1. Upon receipt of an Architectural Application by Management, the Application will be forwarded to the Architectural Review Committee.**
 - A. If the requested modification complies with the Standards, the application will be approved by ARC and the Homeowner will be notified in writing.
 - B. If the application is approximate or meets the intent of the Guidelines, ARC may give conditional approval.
 - C. If the Application does not comply with the Standards, it will be denied.
- 2. If an Application is denied because the Architectural Standards and Guidelines made no provision for this proposed modification, the following procedure is instituted:**
 - A. The Homeowner will be notified and given reason for denial; and
 - B. The Homeowner will be informed that he can request reconsideration.

Process for Reconsideration:

1. The Homeowner shall send his written request for an appeal to Management, who will forward this request to the Board of Directors.
2. The Board shall notify the Owner of the time, date and place of a hearing to review the decision of the Committee. The notice shall be given at least fifteen (15) days prior to the date set for the hearing.
Hearings will be held in executive session unless Owner requests otherwise.
3. After the hearing has taken place, the Board shall notify the Owner, in writing, of its decision. The decision shall become effective not less than five (5) days after the date of the hearing. The determination of the Board shall be final.



DOCUMENT FEE DISCLOSURE

Autumn Terrace at William

77 Las Colinas Lane, San Jose, CA 95119

Phone: (408) 226-3300 Fax: (408) 226-3406

www.GoCompass.com Documents@GoCompass.com

Document	Civil Code Section Included	Fee for Document	Not Available (N/A) Not Applicable (N/App) Directly Provided by Seller and confirmed in writing by Seller as a current document (DP)
Articles of Incorporation or statement that not incorporated	Section 4525(a)(1)	\$20.00	
CC&Rs	Section 4525(a)(1)	\$45.00	
Bylaws	Section 4525(a)(1)	\$35.00	
Operating Rules	Section 4525(a)(1)	\$25.00	
Age restrictions, if any	Section 4525(a)(2)		Not Applicable (N/App)
Rental restrictions, if any	Section 4525(a)(9)		Included with CC&R's
Annual budget report or summary, including reserve study	Sections 5300 and 4525(a)(3)	\$55.00	
Assessment and reserve funding disclosure summary	Sections 5300 and 4525(a)(4)		Included with Budget
Financial statement review	Sections 5305 and 4525(a)(3)	\$20.00	
Assessment enforcement policy	Sections 5310 and 4525(a)(4)		Part of Budget and CC&R's
Insurance summary	Sections 5300 and 4525(a)(3)	\$15.00	Included with Budget
Regular assessment	Section 4525(a)(4)		Part of Budget and Demand Statement
Special assessment	Section 4525(a)(4)		Not Applicable (N/App)
Emergency assessment	Section 4525(a)(4)		Not Applicable (N/App)
Other unpaid obligations of seller	Sections 5675 and 4525(a)(4)		If applicable, Part of Demand Statement
Approved changes to assessments	Sections 5300 and 4525(a)(4), (8)		Part of Budget
Settlement notice regarding common area defects	Sections 4525(a)(6), (7), and 6100	\$15.00	Not Applicable (N/App)
Preliminary list of defects	Sections 4525(a)(6), 6000, and 6100	\$20.00	Not Applicable (N/App)
Notice(s) of violation	Sections 5855 and 4525(a)(5)		Part of Demand Statement
Required statement of fees	Section 4525		Part of Demand Statement
Minutes of regular board meetings conducted over the previous 12 months, if requested	Section 4525(a)(10)	\$50.00	
TOTAL FEES FOR THESE DOCUMENTS:			

- The information provided by this form may not include all fees that may be imposed before the close of escrow. Additional fees that are not related to the requirements of Section 4525 may be charged separately.
- The disclosure provided to a member or potential member pursuant to Sections 4528 and 5300 of the Civil Code, and all documents provided there under, are the property of the association and not its managing agent or the agent's managing firm.
- Compass Management charges \$450.00 for a full sales package which includes demand statement, transfer fee, CC&R's, Articles of Incorporation, By-Laws, Prior month's financial statement, Audit, Budgets for two years, any other info/docs related to or involving Association, Minutes for preceding 12 months, Newsletters for preceding 12 months, HOA Certification, and PRDS Form.

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